



United States
Attorney's Office
Middle District of Florida



LiveCare Inc. Agrees To Pay Up To \$4.9 Million To Resolve False Claims Act Allegations

Friday, January 31, 2025

For Immediate Release

U.S. Attorney's Office, Middle District of Florida

United States Attorney Roger B. Handberg announces today that LiveCare Inc., located in Venice, Florida, has agreed to a settlement of up to \$4.9 million to resolve allegations that the company violated the Anti-Kickback Statute and False Claims Act by unlawfully paying a marketing service for referrals of Medicare beneficiaries.

LiveCare provides remote patient monitoring ("RPM") services to patients with Type 2 diabetes.

"Violations of the Anti-Kickback Statute undermine the integrity of our healthcare system," said U.S. Attorney Roger B. Handberg. "The United States Attorney's Office for the Middle District of Florida will hold providers participating in the federal health care system accountable for these violations in order to preserve program funds and ensure the provision of appropriate services to patients."

"Kickback schemes waste valuable Medicare funds and undermine the integrity of medical decision-making," said Acting Special Agent in Charge Ricardo M. Carcas of the Department of Health and Human Services Office of Inspector General (HHS-OIG). "Our agency will continue to thoroughly investigate health care fraud, including the emerging area of allegations related to remote patient monitoring."

The civil settlement includes the resolution of claims brought by private individuals, on behalf of the United States, under the qui tam (commonly known as "whistleblower") provisions of the False Claims Act. Under those provisions, a private party can file an action on behalf of the United States and receive

a portion of any recovery if the government takes over the case and obtains judgment against or reaches a monetary agreement with the defendant.

This matter was investigated by the U.S. Department of Health and Human Services Office of the Inspector General. It was handled by Assistant United States Attorney Sean Keefe.

The claims resolved by this settlement are allegations only, and there has been no determination of liability.

Updated January 31, 2025

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FALSE CLAIMS ACT

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